SUPREME COURT OF ARIZONA

TOM HORNE, in his Official Capacity as Arizona Superintendent of Public Instruction,

Plaintiff / Appellant,

vs.

KATIE HOBBS, in her Official Capacity as Governor of the State of Arizona; KRIS MAYES, in her Official Capacity as Attorney General of the State of Arizona; CREIGHTON ELEMENTARY SCHOOL DISTRICT; AVONDALE ELEMENTARY SCHOOL DISTRICT; CARTWRIGHT ELEMENTARY SCHOOL DISTRICT; CHANDLER UNIFIED SCHOOL DISTRICT #80; FLAGSTAFF UNIFIED SCHOOL DISTRICT; GLENDALE ELEMENTARY SCHOOL DISTRICT; KYRENE ELEMENTARY SCHOOL DISTRICT; LAVEEN ELEMENTARY SCHOOL DISTRICT; MESA UNIFIED SCHOOL DISTRICT; OSBORN ELEMENTARY SCHOOL DISTRICT; ABC ENTITIES 1-10; DOE INDIVIDUALS 1-10,

Defendants / Appellees.

No. _____

Court of Appeals Division One
No. 1 CA-CV 24-0615

Maricopa County Superior Court
Case No.: CV2023-013656

PETITION FOR REVIEW

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INTRODUCTION

It is well established that education is the great equalizer and offers an unmatched opportunity for those seeking a better life offered by the American Dream. As we show below, structured English immersion is far superior to dual language in having students learn English quickly so that they can succeed academically and in the economy.

Thousands of Arizona students who need to learn to speak English to achieve are being denied equal access to that American Dream because the 10 defendant school districts are forcing them into dual language classrooms in direct violation of Proposition 203—the voter-passed English for the Children Immersion Initiative.

Aided and abetted by the Attorney General and the Governor's public defiance of the law, these school districts openly and blatantly violate the will of the people and deny these children the education to which they are entitled.

In the year 2000, the voters, by a margin of over 60%, passed Proposition 203. This initiative clearly and unambiguously required that students learning English were to be taught in English immersion, and it prohibited bilingual and dual language education.

The 10 school districts that are defendants in this case, aided and abetted by the defendant Attorney General and the Governor, are openly and blatantly violating the initiative by teaching with the dual language method.

Structured English immersion is far more effective in teaching students English than bilingual or dual language education. For example, Defendant Creighton, which uses dual language, had a rate of English language learners becoming proficient in English in one year at the pathetically low rate of 5.1%. By contrast, five structured English immersion districts cited in paragraph 31 of the second amended complaint (referred to in this Petition as the "**Complaint**") had rates ranging from 23.87% to 33.03%. APP-20 ¶ 31.

We are appealing a dismissal pursuant to Rule 12(b)(6), so all allegations of the Complaint are to be taken as true. *CVS Pharmacy, Inc. v. Bostwick in and for County of Pima*, 251 Ariz. 511, 515–16 ¶10 (2021).

Laws are being openly and notoriously defied by governmental bodies, which brings respect for the laws into disrepute. This is clearly a case of statewide importance.

In addition, the decision of the Court of Appeals, affirming dismissal, incorrectly decided important issues of law. A.R.C.A.P. 23(d)(3).

FACTS AND PROCEDURAL BACKGROUND

The Court of Appeals decision (the "**Opinion**") correctly described the initiative as follows:

> In 2000, Arizona voters passed initiative measure Proposition 203. Codified at A.R.S. §§ 15-751 to -755, Proposition 203 governs the public-school instruction of non-English-speaking and non-native-English-speaking children who cannot perform ordinary classroom work in English ("English learners"). The initiative statutes provide that "**all children in Arizona public schools shall be taught English by being taught in English and all children shall be placed in English language classrooms**." A.R.S. § 15-752. As for English learners, the statutes specify **that they must be placed in "structured English immersion" ("SEI") 2 classrooms where "[b]ooks and instructional materials are in English,"** "nearly all classroom instruction is in English," **"all reading, writing, and subject matter[s] are taught in English,**" and "**no subject matter shall be taught in any language other than English**."

APP-6 (emphases added).

The Court of Appeals erroneously affirmed dismissal on the following grounds:

A. Lack of authority for the Superintendent to sue. APP-5.

B. Lack of standing on the basis that none of the defendants were proper. APP-7.

C. In the alternative, the Court of Appeals erroneously affirmed a trial court of award of attorneys' fees not withstanding a violation of Rule of Civil Procedure 54(g)(1) which requires that a request for attorneys' fees be claimed in the

pleadings or a Rule 12 motion, and those defendants made that request in neither one of those alternatives. APP-9.

STANDARD OF REVIEW

This Court reviews a dismissal for failure to state a claim *de novo*. *Coleman v. City of Mesa*, 230 Ariz. 352, 355 ¶ 7 (2012). In considering a plaintiff's claims on a motion to dismiss, courts should "assume the truth of the well-pled factual allegations." *Cullen v. Auto-Owners Ins. Co.*, 218 Ariz. 417, 419 ¶ 7 (2008). Courts should deny a motion to dismiss if there exists "any interpretation of the facts susceptible of proof" under which a plaintiff would be entitled to relief. *CVS Pharmacy*, 251 Ariz. at 515–16 ¶ 10.

ISSUES PRESENTED

1. Whether the Superintendent of Public Instruction has authority to bring this lawsuit. *See* Argument Parts I–III, *infra*.

2. Whether the Superintendent of Public Instruction has standing to bring this lawsuit against the named defendants. *See* Argument Parts II, IV–V, *infra*.

3. In the alternative, if this case is not reversed, whether attorneys' fees should have been awarded despite a violation of Rule 54(g)(1). *See* Argument Part VI, *infra*.

ARGUMENT

I. The Legislature impliedly granted the Superintendent of Public Instruction authority to bring this lawsuit when it gave the Department duties it could not perform without such authority.

Governmental officers and entities "possess all powers that may be fairly implied from, and are necessary for, the complete exercise of their express powers." *City of Phoenix v. Phoenix Civil Service Bd.*, 169 Ariz. 256 (Ct. App. 1991).

The Court of Appeals erroneously interpreted the word "necessary" as "strictly necessary." APP-9 at ¶¶ 13–14.

This is an important issue of law that was incorrectly decided in the context of implied powers from express powers. A constitutional right is "*implied*" or "*necessary*" if it is "convenient or useful or conducive to [an express] power's beneficial exercise." *See United States v. Comstock*, 560 U.S. 126, 133–34 (2010).

> Similarly, does "necessary" always import an absolute physical necessity, so strong, that one thing to which another may be termed necessary, cannot exist without that other? We think it does not. If reference be had to its use, in the common affairs of the world, or in approved authors, we find that it frequently imports no more than that one thing is convenient, or useful, or essential to another. To fully employ the means necessary to an end, is generally understood as employing any means calculated to produce the end, and not as being confined to those single means, without which the end would be entirely unattainable.

McCulloch v. Maryland, 17 U.S. (4 Wheat.) 316, 413–21 (1819) (emphases added).

The Superintendent must monitor the school districts, including "on-site monitoring and . . . classroom observations, curriculum reviews, faculty interviews, student records, a review of English language learner programs and an analysis of programmatic effectiveness, at a minimum, to include prior year data that analyze the progress of English language learners." A.R.S. § 15-756.08(A)-(B). The Superintendent shall "determine whether the school district or charter school is complying with state and federal laws applicable to English language learners." A.R.S. § 15-756.08(C).

So, under the interpretation of the Court of Appeals, the Superintendent is duty-bound to go to a district and say: "You're not complying with state laws applicable to English Language learners." But the district can say: "We're going to continue doing what we're doing and what are you going to do about it?"

That is the case now unless this Court grants review.

The ability of the Department of Education to sue districts is a "necessary" implication of the duties given to the Department of Education under the correct definition of "necessary" in this context as "convenient, or useful, or essential to another", or really, any definition.

In any case, because the legislature gave the duty to the Superintendent and the Department of Education to determine whether districts were in compliance

with state law, it impliedly gave the Department the ability to enforce state law. The ability to sue is the only possibility in this context.

In our brief to the Court of Appeals, we referenced a number of prior cases where government officials sued based on implied rather than express authority, without the cases being dismissed on that basis. *See* https://www.azag.gov/press-release/arizona-attorney-general-brnovich-and-state-superintendent-douglas-announce-arizona, https://www.azag.gov/sites/default/files/docs/press-releases/2016/complaints/ed_Complaint.pdf (former Arizona Superintendent of Public Instruction sues over federal policy on transgender bathrooms in schools); *see also* *Hobbs v. Crosby*, No. CV202200553, 2022 WL 17406170 (Superior Ct. Ariz., Cochise County, November 28, 2022) (Governor Hobbs asserted her implied right to sue to effectuate her duties as Secretary of State); *Doe v. Horne*, No. CV-23-00185-TUC-JGZ, 2023 WL 5017231 (D. Ariz. July 31, 2023) (Superintendent Horne was sued for alleged discrimination of biological boys participating in girls' sports even though there is no express legislative statement that he can sue and be sued); *City of Phoenix v. Phoenix Civil Service Bd.*, 169 Ariz. 256 (Ct. App. 1991) (governmental officers and entities "possess all powers that may be fairly implied from, and are necessary for, the complete exercise of their express powers"). The Court of Appeals erroneously disregarded these cases because they involved areas

other than education and one of the cases involving the Superintendent of Public Instruction related to his being a defendant rather than a plaintiff.

But the law should be consistent regarding implied authority to sue, regardless of the substantive subject matter and the fact that in one of the cases the Superintendent was a defendant rather than a plaintiff establishes the principal as well as if he was the plaintiff. The authority is authority to "sue or be sued." *Kimball v. Shofstall*, 17 Ariz. App. 11 (1972) (recognizing the legislature confers the right to sue and be sued, which it did by implication in this case).

The Defendants argued that the State Board was a necessary party to litigation and the Court of Appeals ruled that "The State Board, not the Department, has the ultimate duty to determine noncompliance and impose a sanction."

During the State Board calls to the public over many months, numerous people, ideologically committed to dual language even though it is illegal, spoke at State Board meetings to urge the State Board not to do anything against dual language. The State Board determined that it did not want to do anything one way or another regarding dual language, except follow any court order. Paragraph 32 of the Complaint (which must be taken as true when dealing with the motion to dismiss, *CVS Pharmacy, supra.*) states that "it has been conveyed to the superintendent that the State Board will not act in regard to this issue *until there is a Court decision*" (emphasis added).

It therefore becomes necessary for the Superintendent, charged with monitoring schools to determine whether they are in compliance with the law, to bring this matter to the courts, which are not subject to political pressure, to vindicate the law when it is being blatantly defied.

The idea that the State Board is a necessary party and should be sued by the Superintendent, who is a member of the State Board, is erroneous, given that the State Board has stated that **it will follow any Court decision**. How in the world can one sue an entity that says it is taking no position **but will follow a court decision**? Any such lawsuit would be laughed out of court and bring disgrace to anyone who would file it.

II. The Superintendent Of Public Instruction has standing because the Court of Appeals decision leaves him unable to perform duties required of him by the Legislature, and because of his potential liability.

Although authority and standing are separate concepts in many contexts, in this context they are closely related. We have previously described how the Court of Appeals Decision leaves the Superintendent unable to perform duties required of him by the legislature. This is an extremely significant harm and should establish standing.

In addition, under A.R.S. § 15-754, he can be personally liable for not doing anything about the open defiance of the law by the 10 defendant school districts. The Court of Appeals describes this as speculative. The Court of Appeals

argued that he has to have "willfully and repeatedly" refused to implement the law. But he gets constant reports from those in the Department of Education monitoring school districts alerting him to open and blatant defiance of the law. If knowing all of this, with repeated reports, he sat back and did nothing for years, it could be determined that his failure to implement the law was willful and repeated. Anyone putting themselves in the place of the Superintendent would regard this as giving him a legitimate interest justifying standing.

III. The Uniform Declaratory Judgment Act applies.

The Uniform Declaratory Judgments Act also grants the Superintendent the authority to bring this lawsuit. That Act provides: "Any person . . . whose rights, status or other legal relations are affected by a statute, municipal ordinance, contract or franchise, may have determined any question of construction or validity arising under the . . . statute, ordinance, contract, or franchise and obtain a declaration of rights, status or other legal relations thereunder." A.R.S. § 12-1832.

The Superintendent is a "person . . . whose rights, status or other legal relations are affected by a statute, municipal ordinance, contract or franchise." He "may have determined by the court any question of construction of validity arising under the . . . statute, ordinance, contract, or franchise and obtain a declaration."

The Court of Appeals erroneously held that the Declaratory Judgment Act was not applicable because there was no underlying cause of action. In this brief

we have shown that there is. The Court of Appeals also stated that the Act is not available "when a defendant has no power to deny the plaintiff's asserted interest." Here, the 10 districts have the power to comply with the law or defy it, so they clearly have that power that the Act requires. The State Board of Education passed four models of instruction, three of which are consistent with Proposition 203. The 10 districts herein voluntarily chose to violate Proposition 203 and could have chosen not to. *See also* A.R.S. § 15-756.13 (requiring school districts to comply with Proposition 203). This is precisely the type of lawless circumstance this Court has previously contemplated and rejected. *See* *Westover v. State*, 66 Ariz. 145, 151 (1947) (recognizing "the necessity of a state government equipped with sufficient power to protect public rights and redress public injuries throughout the entire state, independent of the attitude of local authorities who might be indifferent, incapable, or even antagonistic").

The Attorney General had the power to grant relief not only because she is the chief law enforcement officer of the state, but because it was her opinion that empowered districts to place students in dual language without waivers, even though the Department of Education had ruled that students could not be placed in dual language classes without the proper waiver executed by the parents. APP-19 ¶¶ 23–24; APP-20 ¶¶ 28–30.

It is established that the State Board took the position that whether or not waivers were required was an administrative manner to be decided by the Department of Education. APP-19 ¶ 23.

The Governor had the power to grant relief because it was her advocacy for dual language, even though it was illegal, that helped the districts decide to violate the law. After all, if the Governor is for it, how bad can it be? Instead of advocating for illegal action, the Governor should have been calling on the Attorney General to enforce the law. This is yet another reason she is a proper defendant. *See* *Westover*, 66 Ariz. at 152; *Vergara v. State of California*, 246 Cal. App. 4th 619 (2016).

IV. The Legislature did not make dual language legal; even if it had tried it lacked the power to overrule the voters.

Defendants argued that dual language was authorized by the statutes directing the Board to adopt models. But those models had to be legal under existing law, a self-evident proposition reaffirmed by the statutes in question. *E.g.*, A.R.S. ¶ 15-756.01(D) ("The research-based models of structured English immersion adopted and approved by the state board of education shall . . . meet all state and federal laws.") The statutes adopted by the legislature **did not mention one word about bilingual or dual language.**

Even if they had, they would have been unconstitutional under the voter-approved voter protection provision of the Arizona Constitution because they

would not have furthered the purposes of Proposition 203, which requires exclusive instruction in English and prohibits bilingual instruction. Ariz. Const. art. 4 § 1(6)(B)–(C).

V. All the defendants herein are proper.

A. The 10 school districts are proper defendants.

This Court recently affirmed that the person implementing a violation of law is a proper defendant in *Arizona Republican Party v. Richer*, 257 Ariz. 237, 244 ¶¶ 18–19 (2024). There, the Arizona Republican Party sued Maricopa County as the person implementing a violation of law issued by the Secretary of State. *Id.* This Court reversed both lower courts below, finding that the county was a proper defendant notwithstanding that the policy it was implementing was issued by the Secretary of State. Here, the persons implementing the illegal dual language model are the 10 school districts. They are, therefore, proper defendants. *See also Ex Parte Young*, 209 U.S. 123, 157 (1908) (same); *Diamond v. Charles*, 476 U.S. 54, 64 (1986) (same); *Shell Oil Co. v. Noel*, 608 F.2d 208, 211 (1st Cir. 1979) (same); *Schulz v. Williams*, 44 F.3d 48, 61 n.13 (2d Cir. 1994) (same); *American Civil Liberties Union v. The Florida Bar*, 999 F.2d 1486, 1490 (11th Cir. 1993) (same).

B. The Attorney General is a proper defendant.

Under A.R.S. § 12-1841(A), the Attorney General is a proper defendant in cases alleging unconstitutionality of a statute, as the Superintendent does here against the defendants' interpretation of A.R.S. § 15-756.01. *Ethington v. Wright*,

66 Ariz. 382, 388 (1948); *United Food & Com. Workers Loc. 99 v. Brewer*, No. CV-11-921-PHX-GMS, 2011 WL 4801887 at *4 (D. Ariz. Oct. 11, 2011).

C. The Governor is a proper defendant.

In addition to the reasons given in Part III, *supra*, the Superintendent seeks declaratory relief against the Governor given her erroneous claim that the dual language model does not violate Proposition 203. "Even had the Governor's order not specifically directed state agencies . . . , the Governor is the chief executive officer of the state. . . . It is, therefore, a common occurrence that the Governor, as the chief executive officer of the State, is the named party in the challenges to the implementation of a new proposition or act in either state or federal court." *Yes on Prop 200 v. Napolitano*, 215 Ariz. 458, 470 ¶ 37 (Ct. App. 2007). The situation here is even easier than in *Yes on Prop 200*: The Governor is actively violating Proposition 203.

VI. The Attorney General and defendant school districts should not have been awarded fees in Superior Court.

When a defendant moves to dismiss in Superior Court under Rule 12, it must make its request for fees in the motion to dismiss. Ariz. R. Civ. P. 54(g)(1). Here, the Attorney General and School Districts failed to request fees in Superior Court when they moved to dismiss; their subsequent requests for fees in Superior Court were untimely.

The Court of Appeals agreed with the analysis of Rule 54(g)(1). APP-15 ¶ 31. Instead, it granted the Attorney General and School Districts fees in Superior Court by holding, *sua sponte*, that A.R.S. § 12-348.01 conflicts with Rule 54(g)(1) and overrides it. APP-15 ¶ 32. The Court of Appeals erred.

"The supreme court shall have . . .[p]ower to make rules relative to all procedural matters in any court." Ariz. Const. art. 6 § 5(5). Indeed, "[i]t has been held almost unanimously from time immemorial that courts have the inherent power to prescribe rules of practice and rules to regulate their own proceedings . . . ." *Burney v. Lee*, 59 Ariz. 360, 363 (1942).

While the Legislature creates substantive rights, the Judiciary prescribes the methods by which those rights may be enforced. *State v. Fletcher*, 149 Ariz. 187, 191–93 (1986). In A.R.S. § 12-348.01, the Legislature created a substantive right, the right to recover fees in certain cases between branches of government.

In Rule 54(g)(1), this Court has required a request for fees be made in a responsive pleading. Rule 54(g)(1) prescribes the manner in which the right created by A.R.S. § 12-348.01 must be enforced. Therefore, there is no conflict between A.R.S. § 12-348.01 and Rule 54(g)(1). The Court of Appeals erred. Neither the Attorney General nor the defendant school districts were entitled to fees in Superior Court.

REQUEST FOR ATTORNEYS' FEES AND COSTS

Superintendent Horne requests fees and costs for this appeal pursuant to Arizona Rule of Civil Appellate Procedure 21 and Arizona Revised Statutes §§ 12-342, 12-348.01.

CONCLUSION

The Superintendent respectfully requests the Court to reverse the grant of the motions to dismiss and find that, as a matter of law, dual language in Arizona is illegal according to the initiative passed by the voters, or in the alternative for further proceedings.

RESPECTFULLY SUBMITTED August 18, 2025.

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